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KERTAS PENERANGAN
(*INFORMATION SHEET*)

KOD DAN NAMA PROGRAM / <i>PROGRAM CODE AND NAME</i>	Z-009-2: 2015 CORE ABILITIES	
TAHAP / LEVEL	2 (TWO)	
NO. DAN TAJUK KEBOLEHAN TERAS / <i>CORE ABILITY NO. AND TITLE</i>	CA01 : COMMUNICATION APPLICATION	
NO DAN PENYATAAN KEBOLEHAN / <i>ABILITY NO. AND STATEMENT</i>	01.01. APPLY TWO WAY COMMUNICATION 01.02. DISSEMINATE INFORMATION ELECTRICALLY 01.03. DISSEMINATE INFORMATION MANUALLY 01.04. APPLY INFORMATION CONFIDENTIALITY	
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TAJUK/TITLE : INFORMATION CONFIDENTIALITY

TUJUAN/PURPOSE :

This information sheet describes the requirements to establish the concept of information confidentiality. The person who is competent in this CA shall be able to apply information confidentiality in the working environment effectively and clearly.

PENERANGAN/INFORMATION :

1. Concept of confidentiality.

1.1 Confidentiality is roughly equivalent to privacy. Measures undertaken to ensure confidentiality are designed to prevent sensitive information from reaching the wrong people, while making sure that the right people can in fact get it: Access must be restricted to those authorized to view the data in question.

It is common, as well, for data to be categorized according to the amount and type of damage that could be done should it fall into unintended hands. More or less stringent measures can then be implemented according to those categories.

Sometimes safeguarding data confidentiality may involve special training for those privies to such documents. Such training would typically include security risks that could threaten this information. Training can help familiarize authorized people with risk factors and how to guard against them. Further aspects of training can include strong passwords and password-related best practices and information about social engineering methods, to prevent them from bending data-handling rules with good intentions and potentially disastrous results.



Figure 1. Top Secret sign

A good example of methods used to ensure confidentiality is an account number or routing number when banking online. Data encryption is a common method of ensuring confidentiality.

User IDs and passwords constitute a standard procedure; two-factor authentication is becoming the norm. Other options include biometric verification and security tokens,

key fobs or soft tokens. In addition, users can take precautions to minimize the number of places where the information appears and the number of times it is actually transmitted to complete a required transaction.

Extra measures might be taken in the case of extremely sensitive documents, precautions such as storing only on air gapped computers, disconnected storage devices or, for highly sensitive information, in hard copy form only.

2. Confidentiality Scope And Procedure

2.1 Information need to be known as confidentiality and must be respected privacy rights of organization. The information confidentiality needs to recognize such as;

i) Information Must Be Confidential

The information must be kept safe and not be readily accessible to persons that normally deal with that kind of information. Information which is already in the public domain is generally not protectable. However, where it is a defendant's breach of confidence itself that has resulted in the information becoming publicly available, the defendant remains liable for loss and damage suffered by the plaintiff arising from such disclosure.



Figure 2 - Top Secret on envelope.

2.2. Disclosed In Circumstances Importing Confidentiality.

The information must have been imparted in circumstances which give rise to an obligation of confidentiality. The recipient of confidential information will only be bound if a reasonable man standing in the shoes of the recipient of the information would realize on reasonable grounds that the information was being given to him in confidence. The clearest case is of course where one person gives information on

express condition that he keep it a secret. However, the obligation of confidentiality may also arise by implication having regard to the surrounding circumstances. One of the relationships in which this duty of confidentiality normally arises is that of employer and employee. Generally, during the currency of his or her employment, an employee must observe a "duty of fidelity" to his or her employer, to act in the employer's best interests.



Figure 3 - Working environment.

This includes protecting the trade secrets that the employee is exposed to in the course of his or her work. Once an employee leaves employ, he or she is still obliged to keep confidential the trade secrets of his or her former employer. Thus, for example, an employer is entitled to prevent an ex-employee from making use of a list of customers which the employee deliberately memorized or copied for this purpose. Such protection however does not extend to general skill and knowledge in the employee's head which the employee would necessarily have acquired during the course of his employment.

2.3: Actual or Anticipated Unauthorized Use Or Disclosure

Thirdly, there must be an actual or anticipated unauthorized use or disclosure of the information in question. No action may be brought if no unauthorized breach of confidence is threatened or has occurred.

Where the unauthorized disclosure or use is anticipated, the Courts will in the appropriate circumstances grant an interlocutory injunction to prevent such use or disclosure. The Courts may also award damages for any loss or damage suffered by reason of a breach of confidence, or in certain circumstances, for future injuries in lieu of an injunction.

2.4: Protecting Confidential Information

There is no system of registration for confidential information. Protection is available only by keeping the information secret, because once made public the information cannot subsequently be made secret again. Even if the owner of the misappropriated information takes legal action and obtains payment for the damage suffered, this may never be as good as having the information kept confidential in the first place. An important aspect of maintaining protection is adequate management control by businesses. Access to confidential information by staff should be restricted by management on a "need-to-know" basis, since the commonest cause of loss of confidential information from a company is staff moving to another firm in the same field of business. Appropriate clauses should be included in employment contracts and contracts with third parties such as suppliers, sub-contractors and the like.

2.5: Non-Disclosure Agreement (NDA)

It happens regularly in business that one company needs to disclose its confidential information to another. For example, a manufacturer may need to submit its new product to a test laboratory for technical assessment and approval prior to the product being launched on the market. It is often also necessary to share secrets when some form of cooperation is contemplated between two companies.

In these circumstances, it is strongly advisable for a Non-Disclosure Agreement (NDA) to be drafted and signed by the parties that sets out their obligations to one another in terms of any confidential information that needs to change hands. An NDA provides the advantage that in the event legal action does become necessary due to a breach of confidence, the matter can be handled in much the same way as enforcement of any other business contract.



Figure 4. Test Laboratory.

2.6: Protection Of Undisclosed Information Under International Agreements Article 39

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of the TRIPs Agreement (Trade-Related Aspects of Intellectual Property Rights), which is binding on member countries of the World Trade Organisation, requires the protection of undisclosed information of commercial value and of certain data submitted to governments or government agencies, in the course of such countries ensuring effective protection against unfair competition.

3. Honesty And Integrity

3.1 Confidentiality, integrity and availability, also known as the CIA triad, is a model design to guide policies for information security within an organization. The model is also sometimes referred to as the AIC triad (availability, integrity and confidentiality). The elements of the triad are considered the three most crucial components of security.

Honesty with included sincerity is need in employee to preserve organization information confidentiality. In this context, confidentiality is a set of rules that limits access to information, integrity is the assurance that the information is trustworthy and accurate, and availability is a guarantee of reliable access to the information by authorized people.

i). Confidentiality:

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Such training would typically include security risks that could threaten this information. Training can help familiarize authorized people with risk factors and how to guard against them.



Figure 5. Data should be encrypted.

3.2 Integrity:

Integrity involves maintaining the consistency, accuracy, and trustworthiness of data over its entire life cycle. Data must not be changed in transit, and steps must be taken to ensure that data cannot be altered by unauthorized people (for example, in a breach of confidentiality).

These measures include file permissions and user access controls. Version control maybe used to prevent erroneous changes or accidental deletion by authorized users becoming a problem.

In addition, some means must be in place to detect any changes in data that might occur as a result of non-human-caused events such as an electromagnetic pulse (EMP) or server crash. Some data might include checksums, even cryptographic checksums, for verification of integrity. Backups or redundancies must be available to restore the affected data to its correct state.

3.3 Availability:

Availability is best ensured by rigorously maintaining all hardware, performing hardware repairs immediately when needed and maintaining a correctly functioning operating system environment that is free of software conflicts. It's also important to keep current with all necessary system upgrades.

Providing adequate communication bandwidth and preventing the occurrence of bottlenecks are equally important. Redundancy, failover, RAID even high availability clusters can mitigate serious consequences when hardware issues do occur.

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Fast and adaptive disaster recovery is essential for the worst case scenarios; that capacity is reliant on the existence of a comprehensive disaster recovery plan (DRP). Safeguards against data loss or interruptions in connections must include unpredictable events such as natural disasters and fire.

To prevent data loss from such occurrences, a backup copy may be stored in a geographically-isolated location, perhaps even in a fireproof, waterproof safe. Extra security equipment or software such as firewalls and proxy servers can guard against downtime and unreachable data due to malicious actions such as denial-of-service (DoS) attacks and network intrusions.

4. Codes Of Confidentiality.

4.1 Employee shall safeguard information entrusted to them and not misuse or wrongfully disclose it. The ethical duty of confidentiality must, at times, be balanced against competing ethical considerations or legal or professional requirements that call for disclosure of information obtained or created in a research context.

For example, in exceptional and compelling circumstances, workers or researchers may be subject to obligations to report information to authorities to protect the health, life or safety of a participant or a third party. Researchers are expected to be aware of ethical codes (such as professional codes of conduct) or laws (e.g., those requiring the reporting of children in need of protection) that may require disclosure of information they obtain in a research context. In other situations, a third party may seek access to information obtained and/or created in confidence in a research context.

Researchers shall also inform participants and seek their consent if their personal information may be shared with government departments or agencies, community partners in the research, personnel from an agency that monitors the research, a research sponsor (such as a pharmaceutical company), the REB or a regulatory agency.



Figure 6. Researchers in laboratory.

Researchers may, however, provide administrative bodies with aggregated data that cannot be linked to individuals for purposes such as policy-making or program evaluation. When seeking consent, researchers shall advise prospective participants if aggregated data from a project may be disclosed, particularly where such disclosure may pose a risk to the participants. For example, aggregate data provided to authorities about research on illicit drug use in a penitentiary may pose risks of reprisal to the prisoners, even though they are not identified individually.

When planning a study, researchers should incorporate any applicable statute-based or other legal principles that may afford protection for the privacy of participants and the confidentiality of research information.

SOALAN/QUESTION :

1. Describe how to ensure information confidentiality is safe?
2. Why code of confidentiality is needed?

RUJUKAN/REFERENCES:

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2. <https://en.wikipedia.org/wiki/Dissemination>
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